

Court No. - 32

Case :- WRIT - C No. - 1455 of 2020

Petitioner :- Ravindra Singh

Respondent :- Dakshinanchal Vidyut Vitran
Nigam Limited And Another

Counsel for Petitioner :- Ashwani Kumar
Mishra, Sant Kumar Mishra

Counsel for Respondent :- Baleshwar
Chaturvedi

Hon'ble Shashi Kant Gupta,J.

Hon'ble Piyush Agrawal,J.

This writ petition has been filed, inter alia, for the following relief:

"(i) Issue a writ, order or direction in the nature of certiorari after calling the record of the case and to quash the impugned recovery certificate dated 11.11.2019 issued by the respondent Executive Engineer (copy of which is at Annexure No. 10 to the writ petition)."

Heard learned counsel for the petitioner, Mr. Baleshwar Chaturvedi, learned counsel appearing on behalf of the Electricity Department and perused the record.

At the very outset, learned counsel appearing on behalf of the Electricity Department has stated that the petitioner has got an alternative remedy under Clause 6.5 of the U.P. Electricity Supply code, 2005 to ventilate his grievance.

The learned counsel for the petitioner has not been able to rebut the contention made by the learned counsel for the Electricity Department.

We are not inclined to entertain this writ petition

for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the concerned authority for redressal of his grievance within two weeks from today, his application may be considered and decided by the said authority in accordance with law within a period of four weeks thereafter.

For a period of 6 weeks, the impugned recovery notice/citation dated 11.11.2019 issued by the respondent no. 2 shall remain in abeyance.

It is made clear that this Court has not expressed any opinion with regard to the merit of the case. The authority concerned shall consider the matter on its own merits.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 17.1.2020

Arun